

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN SECONDARY
CYLINDRICAL BATTERIES,
COMPONENTS THEREOF, AND
PRODUCTS CONTAINING THE
SAME**

Investigation No. 337-TA-3926

**COMPLAINANTS' REPLY TO SUBMISSION BY PROPOSED RESPONDENT
ROBERT BOSCH GMBH REGARDING INSTITUTION**

Pursuant to 19 C.F.R. § 210.8(c)(2), Complainants LG Energy Solution, Ltd. and LG Energy Solution Arizona, Inc. (collectively, “Complainants”) respectfully submit this reply to the Submission by Proposed Respondent Robert Bosch GmbH (“Bosch GmbH”) Regarding Institution. The submission should be rejected. It asks the Commission to resolve a disputed, fact-intensive merits question—whether Bosch GmbH is an “owner, importer, or consignee” under 19 U.S.C. § 1337(a)(1)(B)—before institution, before discovery, and before any evidentiary record is developed. That is improper under Bosch GmbH’s own lead authority—the 1043 Investigation. To the contrary, the Complaint adequately pleads importation as to the Bosch Respondents, including Bosch GmbH, and the facts establish far more than a good-faith basis for that allegation.

I. The 1043 Investigation Confirms That Institution Against Bosch GmbH Is Proper

Bosch GmbH’s argument fails at the threshold because it confuses the institution stage with the merits. At institution, the Commission examines the complaint for compliance with 19 C.F.R. § 210.12 and institutes based on the complainants’ allegations. Whether a particular respondent actually imports, sells for importation, or sells after importation the accused articles is a question of fact resolved on a developed record, not on the face of the complaint. The Federal Circuit has confirmed that “[w]hether a party is an importer in terms of Section 337 is a question of fact.” *Comcast Corp. v. Int’l Trade Comm’n*, 951 F.3d 1301, 1313 (Fed. Cir. 2020).

Bosch GmbH’s submission rests almost entirely on *Certain Electrical Connectors, Components Thereof, and Products Containing the Same*, Inv. No. 337-TA-1043 (“the 1043 Investigation”). But that authority proves Complainants’ point. The determination that Bosch GmbH quotes—that it “does not meet the requirements of section 1337(a)(1)(B)” —comes from the **Initial Determination** issued after a full investigation and evidentiary hearing. It was not an institution decision. To the contrary, the Commission **instituted against Bosch GmbH** in that case: the Notice of Institution issued March 14, 2017 expressly named “Robert Bosch GmbH” as a

respondent, and Bosch GmbH remained a respondent through discovery and trial. *See* 82 Fed. Reg. 13654-655 (Mar. 14, 2017). Bosch GmbH's other authorities are likewise post-hearing initial determinations, not institution decisions. *See Certain LED Lighting Devices*, Inv. No. 337-TA-1081, Initial Determination (Dec. 19, 2018); *Certain Semiconductor Integrated Circuits Using Tungsten Metallization*, Inv. No. 337-TA-648, Initial Determination (Sept. 21, 2009). Bosch GmbH thus asks the Commission to do at the pleading stage what, in every authority it cites, was done only on a complete merits record. Bosch GmbH's premature request should be denied.

The Initial Determination in the 1043 Investigation is also readily distinguishable on its facts. There, the ALJ found no violation because the complainant's post-hearing briefing offered "only three statements" as to Bosch GmbH—that a supplier entered agreements with Bosch entities, that Bosch GmbH was the "indirect parent company," and that it participated in an RFQ process—and "d[id] not set forth any evidence regarding Robert Bosch GmbH's role . . . or even suggest that [its] role was an active one, rather than a passive one as an 'indirect' parent." Inv. No. 337-TA-1043, Initial Determination (Doc. ID 674376) at 7. Critically, the accused products there were imported by a **third party** (Foxconn), not any Bosch GmbH entities. But here, the relevant manufacturing, exporting, and importing entities are all Bosch GmbH's **own wholly-owned subsidiaries**, including Bosch Power Tools (China) Co., Ltd. ("Bosch China"), Robert Bosch Power Tools Sdn. Bhd. ("Bosch Malaysia"), and Robert Bosch Tool Corporation ("Bosch Tool") in the U.S. *See, e.g.*, Bosch Annual Report 2025¹ at pp. 130, 131, and 128; *see also*, § III, *infra*. Where the 1043 Investigation record showed only a **passive** role of an indirect parent, the allegations here show a parent that **actively** directs and coordinates on a global scale the design, manufacture, and importation of the accused articles. The more robust allegations here than the

¹ https://assets.bosch.com/media/global/bosch_group/our_figures/pdf/bosch-annual-report-2025.pdf.

three statements in the 1043 Investigation—which was instituted against Bosch GmbH—are likewise sufficient for institution.

II. The Complaint Adequately Pleads Importation as to the Bosch Respondents, Including Bosch GmbH

Even on its own terms, Bosch GmbH’s argument against the sufficiency of the Complaint is wrong because it focuses solely on ¶¶ 109-116 (Section VII) while neglecting the direct allegation of Bosch GmbH’s importation elsewhere. Specifically, the Complaint alleges that “the Bosch Respondents *import into the United States*, sell for importation into the United States, and/or sell within the United States after importation” the accused batteries and products containing them, and the Complaint defines “the Bosch Respondents” to include Bosch GmbH. Complaint, ¶¶ 3, 28. Section VII then supplies the “specific instances” required by 19 C.F.R. § 210.12(a)(3): it identifies the accused Bosch Products, establishes that they contain the accused 40PL EVE cells made in China, and documents that the purchased Bosch Products were shipped to or picked up at U.S. addresses—showing that the Bosch Respondents “either import the products, sell them for importation, and/or sell them within the United States after importation.” *Id.* at ¶¶ 109-113, 116 & Ex. 22. Nothing in the rules requires a complainant to plead the precise internal division of importation roles within a corporate family; that is the province of discovery.

Moreover, the allegations are grounded in facts. Bosch’s own website describe “Robert Bosch Tool Corporation in North America”—the entity that Bosch GmbH admits is properly named as a Respondent—as being “formed in January 2003 when *Robert Bosch GmbH* combined its North American power tool and power tool accessory divisions into one organization.”² It further touts Bosch GmbH’s power tool business as “launch[ing] more than 100 new power tools into the *global market*” per year, reflecting a power-tool operation that runs globally as

² <https://www.boschtools.com/us/en/footer/about-us/>.

orchestrated by its German parent, not an independent undertaking of a U.S. sales subsidiary. Bosch GmbH's complaint that the allegations address "Bosch" collectively thus, at best, goes to the weight of the evidence, not the sufficiency of the pleading, and it is premature.

III. Under *Comcast*, Bosch GmbH Is a Proper Respondent

Bosch GmbH's submission assumes that only the entity on the importation paperwork—its U.S. subsidiary Bosch Tool—can be a respondent. *Comcast* forecloses that assumption. There, the accused set-top boxes were imported by third parties, not Comcast; and Comcast argued, as Bosch GmbH does here, that it "does not itself import the articles." 951 F.3d at 1307. The Federal Circuit affirmed that Comcast was an "importer" under Section 337 because it was "sufficiently involved with the design, manufacture, and importation of the accused products," namely, it designed the set-top boxes, restricted the manufacturers' ability to sell without permission, knew the products were made abroad and imported, and "alone controls the volume of accused products that enter the United States." *Id.* at 1313-14. Control over design and importation, not the name on the paperwork, is what matters.

Bosch GmbH satisfies that standard. With respect to the *design* of the accused power tool battery pack, the accused Bosch battery pack (model EXBA18V-80) is part of "AMPShare — Powered by Bosch," a global platform launched by the parent—Bosch GmbH—first in Europe in 2022 and later in the U.S. in 2023, to make Bosch's 18-volt packs compatible across an alliance of tool brands. *See* EXBA18V-80 Profile³; AMPShare-Powered by Bosch, *Woodworker's Journal*⁴; AMPShare website showing "© Robert Bosch GmbH 2021."⁵ Just as Comcast's boxes were "so tailored to Comcast's system" that they defined the accused article, the accused battery

³ <https://www.bosch-professional.com/sa/en/products/exba18v-80-1600A036ZB>.

⁴ <https://www.woodworkersjournal.com/ampshare-powered-by-bosch/>.

⁵ <https://ampshare.com/gb/en/partner/>.

packs are designed to a cross-brand platform architected at the Bosch-parent level—not the work of a U.S. sales subsidiary, Bosch Tool. The interchangeability Bosch GmbH built into AMPShare ties the accused article directly to its German entity’s design direction and favors institution.

With respect to *manufacturing and importation*, the packaging of the accused article reflects that the cells were made in China and the pack assembled in Malaysia; both Bosch China and Bosch Malaysia are wholly-owned subsidiaries of Bosch GmbH, as is the importing entity named on the packaging, Bosch Tool. *See* Bosch Annual Report 2025 at pp. 130-131, 128. The importation paperwork likewise shows one Bosch subsidiary as the shipper of products like the accused article and another Bosch subsidiary as the importer. *See, e.g.,* ImportGenius records⁶.

BILL OF LADING	PRODUCT	IMPORTER	SUPPLIER	ARRIVAL DATE	COUNTRY OF ORIG
OOLU2168112850	(40 PALLETS) POWER TOOLS INV NO.: XXXXXXX / 50641619 50641621 530142410 50641623 / 50641622, 530142412 50641624 50641625 530142415 50641626 50641627 HS CODE : 846729 HS CODE : 850760UN 3480 LITHIUM ION BATTERIES CLASS 9	ROBERT BOSCH TOOL CORPORATION	ROBERT BOSCH POWER TOOLS SDN BHD	2026-05-24	MALAYSIA
CHSL555373146PVG	CIRCULAR HAND SAW	ROBERT BOSCH TOOL CORPORATION	BOSCH POWER TOOLS CHINA CO. LTD	2026-07-28	CHINA

(annotations added). On information and belief, the parent company in Germany, Bosch GmbH, thus controls the design of the accused battery packs, the entities that manufacture them, the entities that ship them to the United States, and the entity that imports and sells them—far more involvement than a company that passively exists as an “indirect parent.” Bosch GmbH is therefore “sufficiently involved with the design, manufacture, and importation of the accused products” to be a proper respondent. *Comcast*, 951 F.3d at 1313.

For the foregoing reasons, Bosch GmbH’s submission should be rejected.

⁶ <https://www.importgenius.com/suppliers/robert-bosch-power-tools-sdn-bhd>;
<https://www.importgenius.com/suppliers/bosch-power-tools-china-co-ltd>.

Dated: August 7, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I, Jeffrey Matthews, hereby certify that on August 7, 2026 a copy of the foregoing document was served upon the following parties as indicated:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, S.W. Washington, D.C. 20436	☐ Via First Class Mail ☐ Via Hand Delivery ☐ Via Electronic Mail ☒ Via EDIS
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/s/ Jeffrey Matthews

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